



CHAPTER vi

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to Clyde Navigation (Superannuation).

[26th April 1949.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament: 26 Geo. 5. &
1 Edw. 8.
c. 52.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation
of Order in
schedule.
2. This Act may be cited as the Clyde Navigation (Superannuation) Order Confirmation Act 1949. Short title.

SCHEDULE

CLYDE NAVIGATION (SUPERANNUATION)

Provisional Order to amend the provisions of the Clyde Navigation (Superannuation) Order 1908 and the Clyde Navigation Act 1929 relative to the superannuation fund for the officers and servants of the Trustees of the Clyde Navigation and for other purposes.

WHEREAS the Trustees of the Clyde Navigation (hereinafter called "the Trustees") were incorporated by the Clyde Navigation Consolidation Act 1858 and powers have been conferred upon them by the Clyde Navigation Acts 1858 to 1929:

21 & 22 Vict.
c. cxlix.

8 Edw. 7. c. ii.

And whereas by the Clyde Navigation (Superannuation) Order 1908 the Trustees were authorised to establish a superannuation fund for their officers and servants and the superannuation fund rules are contained in the schedule to the said Order:

20 Geo. 5. c. xx.

And whereas by the Clyde Navigation Act 1929 certain alterations and additions were made to the said rules:

And whereas it is expedient that the said rules should be amended so as to secure further and other benefits to persons entitled to superannuation thereunder and to the dependants of such persons:

26 Geo. 5. &
1 Edw. 8. c. 52.

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

Short title and
citation of Acts.

1. This Order may be cited as the Clyde Navigation (Superannuation) Order 1949.

The Clyde Navigation Acts 1858 to 1929 and this Order may be cited together as the Clyde Navigation Acts 1858 to 1949.

Interpretation.

2. In this Order the expressions—

"the Trustees" means the Trustees of the Clyde Navigation;

"the fund" means the superannuation fund established and maintained under the Clyde Navigation (Superannuation) Order 1908 as amended by the Clyde Navigation Act 1929 and this Order and all moneys belonging thereto;

"the rules" means the rules contained in the schedule to the Clyde Navigation (Superannuation) Order 1908 amended as aforesaid;

"member" means every officer and servant of the Trustees within the meaning of rule 3 of the rules.

3. On the date of the passing of the Act confirming this Order Amendment of the following alterations and additions shall be made to the rules rules. and such alterations and additions shall have effect on and after that date (namely):—

Rule 3 shall be read and have effect as if the following words were inserted after the word “paid”:—

“Provided that for the purpose of computing such salary or wage overtime earnings shall be disregarded and no contribution under this rule shall be made in respect thereof;”

and as if the following addition were made at the end thereof:—

“On the application of any member who has been or may be appointed to the employment of the Trustees on account of professional or other special qualifications the Trustees may add such number of years not exceeding ten and not exceeding such a number as would increase the total years of service of such member at the age of sixty-five to over forty (hereinafter called ‘added years of service’) as they shall determine to the period of actual service of such member for all the purposes of these rules other than computation of the periods of ten years referred to in rule 5 (3) and rule 7 subject to the following conditions:—

(1) A member who has been granted added years of service shall thereafter during the remainder of his service contribute to the fund such a sum by way of additional annual contributions as shall be fixed by the actuary as being actuarially equivalent to the contributions which he would have paid if before his appointment he had been employed by the Trustees for a period corresponding to the added years of service at an annual salary equivalent to his annual salary at the date of his appointment plus compound interest on such contributions at the rate of three and one-half per cent. per annum from the respective dates when they would have been payable to the date of his being granted added years of service;

(2) The Trustees shall in respect of each year of the employment of such member after he has been granted added years of service make an additional contribution to the fund equal to the additional contribution made by such member for that year; and

(3) Existing members at the date when this part of this rule comes into operation shall not be entitled to make application to the Trustees to be granted added years of service after the expiry of six months subsequent to the said date and members who join the service of the Trustees after the said date shall not be entitled to make such application

after the expiry of six months subsequent to their becoming members."

In this rule the expression "the actuary" means an actuary appointed and approved as provided in rule 18 (1).

Rule 4 shall be read and have effect as if the following words were inserted after the word "wages" where it secondly occurs therein:—

"(excluding overtime earnings)".

After rule 5 the following new rule 5A shall be inserted:—

"5A. Every member at the date when this rule takes effect shall have the option exercisable by notice in writing to the Trustees within three months after the said date of contributing to the fund over and above his contribution under rule 3 an additional contribution of one-half per cent. of his salary or wage (excluding overtime earnings) and the Trustees shall over and above their contributions under rule 4 contribute to the fund an additional contribution of one-half per cent. of the total salaries and wages (excluding overtime earnings) paid to members exercising this option and in the event of the death before resignation or retirement of any member who has exercised this option there shall be paid to the widow next of kin executor or other legatee of such member in addition to any payment under rule 13 a sum equal to one year's salary or wage of such member at the rate (excluding overtime earnings) which he would normally have been receiving for full employment at the date of his death. Provided that the said additional contribution shall be disregarded in calculating the amount repayable under rules 9 10 and 12 to a member who leaves the service of the Trustees or the amount payable under rule 13 to the widow next of kin executor or other legatee of a deceased member.

Every new member entering the scheme after the date when this rule takes effect shall be held to have exercised the said option on entry."

Rule 7A shall be read and have effect as if the following words were inserted after the word "him":—

"in respect of his wages (excluding overtime earnings)".

Rule 7B shall be re-numbered as 7C and the following new rule 7B shall be inserted:—

"7B. A member shall have the option exercisable by notice in writing to the Trustees not less than five years before the earliest date at which he would be entitled to retire under rule 5 (2) or (3) of surrendering such part of his superannuation allowance as he may decide being not more than one-third thereof in order

that in the event of his death whilst in receipt of a superannuation allowance an allowance may thereafter be paid to such nominee being the widow or a dependent sister or daughter of such member as may be nominated by such member and approved by the Trustees during the lifetime of such nominee. The yearly allowance so payable to such nominee shall be in accordance with table A appended to these rules:

Provided always that—

(1) A member shall not surrender (a) any such part as would make the amount of the reduced allowance payable to the member less than the amount of the allowance which might become payable to the nominee under this rule or (b) a smaller part than would secure for the nominee an allowance equal to one-fourth of the amount of the reduced allowance payable to the member or (c) any part which is not an exact number of pounds;

(2) In the event of the nominee of such member predeceasing the normal date of retirement of such member during his lifetime the exercise of the said option shall be deemed to be cancelled but in the event of the nominee of such member predeceasing him after his retirement only the reduced amount of his superannuation allowance shall continue to be paid to such member;

(3) In the event of such member resigning or retiring under the provisions of rule 5 (1) the exercise of the said option shall be deemed to be cancelled;

(4) Any member at the date when this rule takes effect who would be entitled to retire less than five years but not less than four years after the said date shall be entitled to exercise the said option within three months after the said date and any such member who would be entitled to retire less than four years after the said date may be allowed to exercise the said option within the said period of three months subject to the approval of the Trustees and after satisfying any condition that may in his case be recommended by the actuary and accepted by the Trustees including if required passing a medical examination."

In this rule the expression "the actuary" means an actuary appointed and approved as provided in rule 18 (1).

Rule 7c (formerly 7b) shall be read and have effect as if the following words were added at the end thereof:—

"In the case of a member who while a member joined the war service during any of the years from one

thousand nine hundred and thirty-nine to one thousand nine hundred and forty-five there shall be added in the computation of his term of service the period during which he was on war service and in respect of which he has paid his contributions to the fund."

Rule 10 shall be read and have effect as if in lieu of the words "without interest" the words "together with simple interest thereon at such rate not exceeding three per cent. per annum as the Trustees shall determine" were added at the end thereof.

Rule 11 shall be read and have effect as if the words "either the half or the whole of" were deleted the words "or the half of his contributions under the rules as formerly existing" were inserted after the word "provided" the words "(including interest if any)" were inserted after the word "sum" and the words "no interest however being charged thereon" were deleted.

Rule 13 shall be read and have effect as if in lieu of the words "his nearest relative or relatives if entirely or partially dependent on him at the time of his death" the words "his next of kin executor or other legatee" were inserted therein and as if the last sentence of the rule beginning with the word "Provided" were deleted.

Rule 13A shall be deleted and the following new rule substituted therefor:—

"13A. In the event of the death within five years after the date of the resignation or retirement of a member who is in receipt of a superannuation allowance and whose nominee does not become entitled to an allowance by virtue of the provisions of rule 7B the Trustees shall until the expiry of five years from the date of his resignation or retirement continue to pay the allowance to which such member was entitled in such way as in their discretion they shall think fit to his widow next of kin executor or other legatee and in the event of the death of a nominee of a member whilst such nominee is in receipt of an allowance as provided in rule 7B within five years of the date of resignation or retirement of such member the Trustees shall until the expiry of five years from the date of such member's resignation or retirement likewise continue to pay such allowance to the next of kin executor or other legatee of such member. Failing there being any next of kin executor or other legatee the Trustees shall pay such reasonable funeral expenses of such nominee (not exceeding the amount which would have been payable if continued as aforesaid) as the Trustees may judge proper."

Rule 19 shall be read and have effect as if in lieu of the words “by the Trustees and by the members” the words “under rules 3 and 4 by the members and the Trustees” were inserted therein.

Rule 20 shall be read and have effect as if in lieu of the words “of four per cent” the words “provided by the rules” were inserted therein.

After rule 22 the following new rule 22A. shall be inserted:—

“22A.—(1) Every member at the date when this rule takes effect shall have the option exercisable within three months after the said date of having his contributions under rule 3 paid or payable into the fund subsequent to the fifth day of July one thousand nine hundred and forty-eight reduced by the sum of one shilling per week and the superannuation allowance under rule 7 paid to a member exercising such option shall according to his age at the said fifth day of July one thousand nine hundred and forty-eight shown in column 1 of table B appended to these rules be reduced by a sum equal to the amount shown in column 2 (in the case of males) or column 3 (in the case of females) of the said table B in relation to such age multiplied by the number of years in respect of which such reduced contributions have been paid.

(2) Every new member entering the scheme after the date when this rule takes effect shall contribute under rule 3 one shilling per week less than the amount therein provided for and the superannuation allowance under rule 7 payable to such new member shall be reduced by the sum of one pound fourteen shillings multiplied by the number of years in respect of which he has contributed to the fund. In all such cases the contribution payable by the Trustees under rule 4 shall also be reduced by the sum of one shilling per week:

Provided that if a member becomes entitled to a superannuation allowance before reaching the age of sixty-five (in the case of a male) or the age of sixty (in the case of a female) the reduction in his or her superannuation allowance by virtue of this rule shall not take effect until the member reaches the relevant age.”

The following tables shall be added at the end of the Rules:—

TABLE A

(Rule 7B)

Table showing according to the age of the member and the age of his female nominee the amount of annual allowance payable to the nominee as from the date of the death of the member if the member dies before his nominee for each £1 of the annual superannuation allowance surrendered by him.

Age of Female Nominee	Age of Member					
	60	61	62	63	64	65
50	£ s. d. 1 15 6	£ s. d. 1 12 9	£ s. d. 1 10 3	£ s. d. 1 7 11	£ s. d. 1 5 9	£ s. d. 1 3 9
51	1 17 0	1 14 1	1 11 5	1 9 0	1 6 9	1 4 8
52	1 18 8	1 15 7	1 12 9	1 10 2	1 7 10	1 5 8
53	2 0 6	1 17 2	1 14 2	1 11 6	1 9 0	1 6 8
54	2 2 6	1 19 0	1 15 9	1 12 10	1 10 3	1 7 10
55	2 4 9	2 1 0	1 17 6	1 14 5	1 11 8	1 9 1
56	2 7 2	2 3 2	1 19 6	1 16 2	1 13 3	1 10 6
57	2 9 10	2 5 7	2 1 8	1 18 1	1 14 11	1 12 1
58	2 12 10	2 8 3	2 4 0	2 0 3	1 16 10	1 13 9
59	2 16 2	2 11 2	2 6 8	2 2 7	1 18 11	1 15 7
60	2 19 10	2 14 6	2 9 7	2 5 3	2 1 3	1 17 8
61	3 3 11	2 18 1	2 12 11	2 8 2	2 3 11	2 0 0
62	3 8 6	3 2 3	2 16 7	2 11 6	2 6 10	2 2 7
63	3 13 8	3 6 10	3 0 8	2 15 1	2 10 1	2 5 6
64	3 19 6	3 12 0	3 5 4	2 19 3	2 13 9	2 8 10
65	4 6 2	3 17 10	3 10 6	3 3 10	2 17 11	2 12 6
66	4 13 9	4 4 7	3 16 4	3 9 0	3 2 6	2 16 7
67	5 2 3	4 12 2	4 3 1	3 14 11	3 7 9	3 1 2
68	5 11 10	5 0 8	4 10 8	4 1 8	3 13 8	3 6 5
69	6 2 6	5 10 4	4 19 2	4 9 3	4 0 5	3 12 5

NOTE.—In this table the expression “age” in relation to the member means his age on the first day in respect of which his superannuation allowance will become payable if that day is his birthday or in any other case his age on his last birthday preceding that day and in relation to the female nominee means her age on the first day in respect of which the member’s superannuation allowance will become payable if that day is her birthday or in any other case her age on her last birthday preceding that day.

TABLE B
(Rule 22A)

Table showing the annual reduction in superannuation allowance in respect of each year during which the reduced contribution is paid.

Column 1					Column 2			Column 3		
Age					Male officers and servants			Females		
					£	s.	d.	£	s.	d.
Under 21	...	...	...	...	1	14	0	1	14	0
21 and under 22	...	...	...	...	1	14	0	1	11	0
22	"	"	23	...	1	14	0	1	8	6
23	"	"	24	...	1	13	0	1	6	6
24	"	"	25	...	1	12	0	1	5	0
25	"	"	26	...	1	11	0	1	3	9
26	"	"	27	...	1	10	0	1	2	3
27	"	"	28	...	1	9	0	1	0	9
28	"	"	29	...	1	8	0		19	6
29	"	"	30	...	1	7	0		18	6
30	"	"	31	...	1	6	0		17	6
31	"	"	32	...	1	5	0		16	9
32	"	"	33	...	1	4	0		16	0
33	"	"	34	...	1	3	0		15	6
34	"	"	35	...	1	2	6		15	0
35	"	"	36	...	1	2	0		14	3
36	"	"	37	...	1	1	6		13	9
37	"	"	38	...	1	1	0		13	3
38	"	"	39	...	1	0	6		12	9
39	"	"	40	...	1	0	0		12	3
40	"	"	41	...		19	6		12	0
41	"	"	42	...		19	0		11	9
42	"	"	43	...		18	6		11	6
43	"	"	44	...		18	0		11	3
44	"	"	45	...		17	6		11	0
45	"	"	46	...		17	0		10	9
46	"	"	47	...		17	0		10	6
47	"	"	48	...		16	6		10	3
48	"	"	49	...		16	0		10	0
49	"	"	50	...		16	0		9	9
50	"	"	51	...		15	6		9	6
51	"	"	52	...		15	0		9	6
52	"	"	53	...		15	0		9	6
53	"	"	54	...		14	6		9	6
54	"	"	55	...		14	0		9	6
55	"	"	56	...		14	0		9	6
56	"	"	57	...		13	6		9	6
57	"	"	58	...		13	0		9	6
58	"	"	59	...		13	0		9	6
59	"	"	60	...		12	6		9	6
60 and over	...	...	...	...		12	0		9	6

Costs of Order.

4. All costs charges and expenses of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Trustees out of the revenues of their undertaking.

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